

**CHAPTER ccxliii.**

An Act to empower the mayor aldermen and burgesses of the borough of Bangor to make a gift of a new site for Bangor College to provide recreation grounds to provide weighing-machines to acquire the Penrhyn Hall and for other purposes. [14th August 1903.]

A.D. 1903.

WHEREAS the borough of Bangor in the county of Carnarvon (in this Act called "the borough") is a municipal borough under the government of the mayor aldermen and burgesses thereof (in this Act called "the Corporation") and is subject to the Acts relating to municipal corporations:

And whereas the University College of North Wales (in this Act called "the College") was incorporated by Royal Charter dated the 4th day of June 1885 with perpetual succession and a common seal and with power without any further licence in mortmain to take purchase and hold and also to grant demise or otherwise dispose of real and personal property and to do all other things incidental or appertaining to a body corporate subject to a proviso that the College shall not at any time hold real property in the United Kingdom exceeding the annual value of ten thousand pounds ascertained at the time of the acquisition thereof over and above the value of the site buildings and hereditaments of the College used and occupied for the immediate purposes thereof and the object of the College is to provide instruction and promote higher education in the manner described in the said charter:

And whereas on the 24th day of August 1883 it was decided by arbitrators appointed (as a result of two conferences and numerous meetings of a committee of parties locally interested) for the purpose of deciding upon the claims of thirteen competing towns that the College should be located in Bangor:

A.D. 1903.

And whereas the principal work of the College is at present carried on within the borough upon temporary leasehold premises which were formerly used as the Penrhyn Arms Hotel and are inconveniently situated and wholly inadequate in extent for the purposes of the College and it is imperative that a permanent home should be provided for the College upon a more advantageous site :

And whereas it is of the utmost importance in the interests and for the well-being and prosperity of the borough both present and future to retain within its boundaries the College and numerous other educational institutions which have by natural affinity grouped themselves in the neighbourhood of the College and to secure this object the Corporation have resolved subject to the sanction of Parliament to provide a new site for the College in manner in this Act appearing and the court of governors of the College have resolved to accept such new site :

And whereas by an agreement dated the 7th day of December 1901 and made between Henry Platt C.B. of the one part and the Corporation of the other part the Corporation agreed to purchase from the said Henry Platt the fee simple in possession of certain parcels of land therein described forming part of an estate commonly known as the Bishop's Park subject to the sanction of the Local Government Board being obtained for the borrowing of money by the Corporation for the purpose of the purchase which sanction was subsequently obtained and is evidenced by a memorandum of the said Board dated the 9th day of October 1902 :

And whereas the purchase of the said parcels of land was designed for the purpose of street improvements and public walks and pleasure grounds and for municipal purposes but it is expedient that a part thereof described in the first part of the First Schedule to this Act should be used for the purpose of a new site for the College :

And whereas the part of the Bishop's Park described in the first part of the First Schedule to this Act is insufficient in extent to serve by itself as a new site for the College and it is expedient that the Corporation should be authorised to acquire for that purpose the Penrallt estate described in the second part of the First Schedule to this Act :

And whereas it is expedient that the Corporation should be authorised to give dedicate and appropriate for the purposes of the College in the manner and upon the conditions in this Act mentioned the lands described in the First Schedule to this Act

and to appropriate and use the said lands for such other temporary and permanent purposes as are in this Act mentioned: A.D. 1903.

And whereas it is expedient that provision should be made for the application of funds and endowments of the College and for other matters incidental to the removal of the College to the site proposed to be appropriated for their purposes under the powers of this Act:

And whereas there is no adequate means existing within the borough for the weighing of goods and it is expedient that the Corporation should be empowered to provide and manage weighing-houses weighing-machines and other conveniences as in this Act mentioned:

And whereas the Penrhyn Hall situate in the borough and used for public meetings and other purposes is vested in a body of trustees (in this Act called "the trustees") by virtue of the provisions contained in an indenture dated the 2nd day of February 1863 and made between Hugh Beaver Roberts of the first part the Honourable Edward Gordon Douglas Pennant of the second part and the Very Reverend James Vincent Vincent and twelve others of the third part and an indenture dated the 2nd day of February 1863 and made between the Honourable Edward Gordon Douglas Pennant of the one part and the Very Reverend James Vincent Vincent and twelve others of the other part:

And whereas it is expedient that the said Penrhyn Hall should be vested in and controlled and managed by the Corporation for the general interest of the inhabitants of the borough and that the Corporation should be authorised to take over from the trustees and the trustees should be authorised to transfer and convey to the Corporation the said Penrhyn Hall and all other property held by the trustees under the terms of their trust:

And whereas the trustees have borrowed and now owe upon mortgage of the said Penrhyn Hall the sum of one hundred and eighty pounds or thereabouts:

And whereas it is expedient that the Corporation should be invested with the powers with respect to purchasing appropriating and dealing with land and borrowing money in this Act contained:

And whereas it is expedient that further powers should be conferred upon the Corporation for the purpose of providing laying out and carrying on recreation grounds and of paying or contributing towards the cost of a band of music:

And whereas it is expedient that the Corporation should be invested with the sole power to appoint the collectors of the poor

A.D. 1903. — rate and that provision should be made as in this Act contained for the more uniform assessment and collection of rates within the borough :

And whereas it is expedient that the other provisions in this Act contained should be made :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

And whereas estimates have been prepared by the Corporation in relation to the following purposes in respect of which they are by this Act authorised to borrow money and such estimates are as follows :—

For carrying into effect the purchase of the Penrallt estate by this Act authorised the sum of eight thousand one hundred and fifty pounds ;

For the replacement of moneys advanced up to March 31st 1902 on current account for capital expenditure upon the gas undertaking of the Corporation in respect of gas meters stoves and mains the sum of one thousand nine hundred and forty-seven pounds ;

For the provision of mains regenerator furnaces meters stoves and other plant in connection with the gas undertaking of the Corporation the sum of three thousand and fifty-three pounds :

And whereas an absolute majority of the whole number of members of the town council at a meeting held on the nineteenth day of November one thousand nine hundred and two after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the North Wales Chronicle a local newspaper published and circulating in the borough such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the borough fund and borough rate of the borough :

And whereas such resolution was published twice in the North Wales Chronicle a local newspaper published and circulating in the borough and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the members of the town council at a further special meeting held in pursuance of a similar notice on the thirty-first day of December one thousand nine hundred and two being not less

than fourteen days after the deposit of the Bill for this Act in , A.D. 1903.
Parliament :

And whereas the owners and ratepayers of the borough by resolution passed in the manner prescribed by the Public Health Act 1875 (Schedule III.) have consented to the promotion of the Bill for this Act :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Bangor Corporation Act 1903. Short title.

2. This Act is divided into Parts as follows :—

Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—Lands.

Part III.—Gift of new site for Bangor College.

Part IV.—Recreation grounds.

Part V.—Weighing-machines.

Part VI.—Penrhyn Hall.

Part VII.—Borrowing powers.

Part VIII.—Miscellaneous.

3. The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of land otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking and section 127 of the Lands Clauses Consolidation Act 1845) so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act are incorporated with and form part of this Act. Incorporation of Acts.

4. In this Act the several words and expressions to which by the Acts wholly or partially incorporated with this Act meanings are assigned have the same respective meanings unless there is something in the subject or context repugnant to such construction Provided that for the purposes of this Act in the Acts wholly or partially incorporated with this Act— Interpretation.

The expressions “the promoters of the undertaking” and “the undertakers” mean the Corporation :

A.D. 1903. And in this Act unless the subject or context otherwise require—

“The borough” means the borough of Bangor in the county of Carnarvon :

“The Corporation” means the mayor aldermen and burgesses of the borough :

“The town council” means the town council of the borough :

“The town clerk” means the town clerk of the borough :

“The district fund” and “the general district rate” mean respectively the district fund and the general district rate of the borough :

“The borough fund” and “the borough rate” mean respectively the borough fund and the borough rate of the borough :

“Statutory securities” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security (not being an annuity rentcharge or security transferable by delivery) authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 other than securities of the Corporation :

“The College” means the University College of North Wales incorporated by Royal Charter dated the 4th day of June 1885 :

“The trustees” means the trustees in whom the Penrhyn Hall is for the time being vested by virtue of the provisions of two several indentures dated the 2nd day of February 1863 recited in the preamble to this Act :

“The conveyance” means the transfer and conveyance of the real and personal property and rights and privileges of the trustees to the Corporation under the power by this Act conferred :

“Recreation grounds” includes parks gardens public walks and pleasure grounds.

PART II.

LANDS.

5. Subject to the provisions and for the purposes of this Act the Corporation may by agreement acquire all or any part of or any

Power to
acquire by
agreement

interest in the lands within the borough commonly known as "the Penrallt estate" and any part of or any interest in the lands within the borough commonly known as "the Bishop's Park" not already acquired by them which Penrallt estate and Bishop's Park are more particularly described in the First Schedule to this Act.

A.D. 1903.

Penrallt
estate and
part of
Bishop's
Park.

6. The Corporation in addition to any other lands which they are by this Act authorised to acquire may from time to time by agreement purchase take on lease acquire and hold for the purposes of this Act any lands not exceeding in the whole ten acres. The consideration for any such acquisition may be either money or land or a mixed consideration of money and land and on any exchange the Corporation may give or take any money for equality of exchange.

Power to
purchase
additional
lands by
agreement.

7. The Corporation may by agreement purchase any right to take any easement (not being an easement or privilege of water in which persons other than the grantors have an interest) which they may require for the purposes of this Act and for the purpose of every such purchase the term "lands" in the Lands Clauses Acts shall be deemed to include "easements."

Purchase
of easements
by agree-
ment.

8. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons
empowered
by Lands
Clauses Acts
to sell lands
may grant
easements &c.

9. The Corporation shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

Restriction
on taking
houses of
labouring
class.

If the Corporation acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall

A.D. 1903. be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Power to
remove
buildings
and lay out
land.

10. The Corporation may take down remove demolish or otherwise dispose of any buildings or erections upon any of the lands by this Act authorised to be acquired or appropriated by them and may alter the levels of and lay out excavate make up enclose fence sewer drain improve or otherwise deal with any such lands so as to make the same more suitable for the purposes to which the Corporation are by this Act authorised to appropriate them and the Corporation may sell or otherwise dispose of any materials arising from the excavation of any such lands or the taking down of any buildings or erections thereon and shall carry the proceeds of any such sale to the credit of the fund to which the cost of the buildings sold has been charged.

Power to
appropriate
lands.

11. The Corporation may appropriate and use with the approval of the Local Government Board and subject to such conditions as that Board may think fit to impose for any of the purposes of this Act or for any of the purposes of the Public Health Acts or the Municipal Corporations Acts any lands or property for the time being vested in them which are not wanted for the purposes for which such lands and property were originally acquired but nothing in this section shall authorise the Corporation to create or permit the creation or continuance of any nuisance on any such lands.

Power to
retain sell
&c. lands.

12. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Corporation may retain hold and use for such time as they may think fit and may from time to time sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired under this Act and

may sell exchange or dispose of any rents reserved on the sale exchange lease or disposition of such lands and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange. A.D. 1903.
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13. So long as any lands remain to be acquired by the Corporation under the authority of this Act and the Corporation possess unexhausted borrowing powers for the purpose of the acquisition of such lands they may so far as they consider necessary apply moneys received by them on the sale or exchange or by the leasing or other disposition of lands or interests in land as aforesaid in the purchase of lands so remaining to be acquired but as to moneys so received and not so applied the Corporation shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment by this Act provided except to such extent and upon such terms as may be approved by the Local Government Board : Application
of proceeds
of sale of
surplus
lands.

Provided that the amount to be applied in the purchase of land under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by this Act for the acquisition of such land :

Provided further that the borrowing powers by this Act conferred for the acquisition of such land shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

PART III.

GIFT OF NEW SITE FOR BANGOR COLLEGE.

14. The Corporation may by deed under their seal give dedicate and appropriate for the purposes of the College the Penrallt estate (described in the second part of the First Schedule to this Act) and that portion of the Bishop's Park which is described in the first part of the First Schedule to this Act provided that such gift dedication and appropriation shall be subject to the following reservations restrictions conditions and terms (that is to say) :— Appropriation of land
for purposes
of College.

- (1) The Corporation shall be at liberty at all times free of charge in through under and upon the lands so given dedicated and appropriated (in this section referred to as "the dedicated lands") to lay down construct maintain repair take up alter renew enlarge and extend such sewers

A.D. 1903.

drains water mains gas mains electric lines pipes wires and other apparatus as they may think fit and to enter upon the dedicated lands at all reasonable times for the purpose of securing access to such apparatus. Provided that the liberty by this subsection reserved to the Corporation shall not be exercised in such a manner as to interfere with any portions of the dedicated lands which the College propose to utilise as the actual sites for erection of their buildings or to injuriously affect the structure or sanitation of any buildings of the College or to interfere with or injure the scientific work and appliances of the College and all damage occasioned by the exercise of the said liberty shall be made good by the Corporation :

- (2) The College shall within five years after the execution of the said deed substantially commence the construction upon the dedicated lands of suitable buildings for the purpose of the work of the College and shall within twenty years after the execution of the said deed complete the construction and provision upon the dedicated lands of buildings works fittings apparatus and things suitable and adequate in all respects for carrying on part of the work of the College. Provided that the Corporation may by declaration under their seal extend either or both of the periods mentioned in this subsection to such extent as they may think fit :
- (3) After the construction of such buildings and works the College shall at all times keep the same duly maintained and duly carry on upon the dedicated lands educational work of the College :
- (4) The College shall not at any time without the consent of the Corporation in writing under their seal assign exchange lease or otherwise dispose of or part with the possession of any part of the College lands except to a tenant or tenants for a term not exceeding three years :
- (5) If the College fail duly to commence or to complete the construction and provision of buildings works fittings apparatus and things in accordance with subsection (2) of this section or fail for a period of two years duly and with reasonable expedition to proceed with the construction of such buildings and works after commencement thereof or cease for a period of five years to carry on upon the dedicated lands as required by this section educational work the College shall pay to the Corporation a sum of money equal to the amount of the price paid by the Corporation for the

A.D. 1903.

acquisition by them of the dedicated lands together with the amount of all legal parliamentary and other costs and expenses reasonably incurred by the Corporation in and about the acquisition and the dedication and transfer to the College of the dedicated lands and if the College fail to pay the said sum of money for a period of two years after the same shall first have become payable the dedicated lands shall if the Corporation by deed of declaration under their seal so require revert to and become the property of the Corporation absolutely freed from all trusts liens powers or provisions in favour of the College :

- (6) Until the College commence to construct buildings upon the dedicated lands in accordance with the foregoing provisions of this section the Corporation shall be entitled to let the said lands for any purpose on a tenancy terminable at will or by notice not exceeding six months or to use the said lands for the purpose of recreation grounds and in that case to exercise with regard to the same the powers conferred by Part IV. of this Act and any other powers for the time being vested in the Corporation with reference to recreation grounds under their control.

15. All moneys rents funds endowments and property at the date of the passing of this Act applicable towards the establishment maintenance and repair of the existing buildings of the College and the carrying on conduct and management or other purposes of the College shall be applicable towards the expenses of or connected with the removal and transfer of the College to the dedicated and other College lands and after such removal and transfer to the establishment maintenance and repair of the buildings of the College on the College lands and the carrying on conduct and management or other purposes of the College thereon in like manner in every respect as the same but for such removal and transfer would have been applicable towards the establishment maintenance and repair of the College on the existing site and its carrying on conduct and management or other purposes.

Funds and endowments to continue applicable after removal of College.

PART IV.

RECREATION GROUNDS.

16. The Corporation may appropriate and use either permanently or during such time as the Corporation may think fit for the purpose of recreation grounds any portion of the Bishop's Park and Penrallt estate acquired or to be acquired by them and not for the time being appropriated by the Corporation to any other purpose

Appropriation of lands for recreation grounds.

A.D. 1903. and in respect to any lands so appropriated for the purpose of recreation grounds the Corporation shall so long as the same are used for that purpose be entitled to exercise the powers conferred by the Public Health Act 1875 in respect to public walks or pleasure grounds as well as the powers conferred by this Act in respect to recreation grounds.

Power to erect buildings in recreation grounds.

17. The Corporation may in any recreation ground for the time being belonging to or held by them erect maintain furnish and equip and may remove refreshment assembly and reading rooms museums art galleries pavilions baths conservatories and other buildings which may be required or convenient for the purposes of such recreation ground and the public resorting thereto and may charge for admission to any of such buildings or in respect of the use thereof or of any part or parts thereof respectively Provided that the Corporation shall not charge for admission to any reading room or museum on more than twelve days in any one year nor on more than four consecutive days on any one occasion.

Power to let refreshment rooms.

18. The Corporation may let any refreshment rooms with their appurtenances in the recreation grounds for the time being belonging to or held by them to any such person for such term not exceeding three years at any one time at such rent payable at such times under such covenants and on such conditions and with under and subject to such rights powers privileges and authorities relating thereto respectively as the Corporation may think fit.

Power to let reading and assembly rooms.

19. The Corporation may let any reading rooms or assembly rooms in the recreation grounds for the time being belonging to or held by them for the purpose of particular meetings or entertainments.

Power to provide apparatus for games.

20. The Corporation may provide apparatus for games and recreation for the use of the public frequenting the recreation grounds for the time being belonging to or held by them and may charge for the use thereof and they may lease or grant for any term not exceeding three years the right of providing and charging for such apparatus upon such terms and conditions as they think proper and may make regulations with respect to the use and payment for the use of such apparatus.

Power to set apart portions of recreation grounds for games.

21. The Corporation may set apart a portion of their recreation grounds that is to say the lands more particularly described in the third part of the First Schedule hereunder written or any part thereof for cricket football archery lawn tennis and other games and for the drill of volunteers yeomanry or cadets or

of any military or police force or for the purpose of the delivery of speeches or the holding of meetings of public or local interest but so that the same shall be open to the public when not in use for such games or drill or other purposes and the Corporation shall have the same power of making byelaws for the regulation of the portions of the recreation grounds so set apart as if the same were public pleasure grounds purchased by the Corporation under the powers contained in the Public Health Act 1875. A.D. 1903.

22. The provisions of the Public Health Acts Amendment Act 1890 shall apply to the lands of the Corporation more particularly mentioned in the third part of the First Schedule to this Act or any part thereof when used or set apart for the special purposes in the last preceding section mentioned as if such special purposes were mentioned in the said Act and the same may be closed on a public holiday but not on any Sunday against the public. Power to close recreation grounds.

23. The Corporation may place or authorise any person or persons to place seats shelters or chairs in any street recreation ground or other public place within the borough for the use of the public and may if they think fit charge or allow such person or persons to charge a reasonable sum for the use of chairs and may make byelaws for regulating the use of seats shelters and chairs and for preventing injury or damage thereto. Power to provide and let chairs.

24. The recreation grounds within the borough shall be deemed streets for the purposes of sections 24 25 and 29 of the Town Police Clauses Act 1847 and also for the purposes of so much of section 28 of that Act as relates to the following offences:— Recreation grounds to be deemed streets for certain purposes.

Every person who slaughters or dresses any cattle or any part thereof except in the case of cattle overdriven which may have met with accident and which for the public safety or other reasonable cause ought to be slaughtered on the spot:

Every common prostitute or night-walker loitering and importuning passengers for the purpose of prostitution:

Every person who wilfully and indecently exposes his person:

Every person who publicly offers for sale or distribution or exhibits to public view any profane indecent or obscene book paper print drawing painting or representation or sings any profane or obscene song or ballad or uses any profane or obscene language:

Every person who wantonly discharges any firearm or discharges any missile or makes any bonfire:

A.D. 1903.

Every person who throws or lays any dirt litter ashes or nightsoil or any carrion fish offal or rubbish on any street.

Power to contribute towards band.

25. The Corporation may pay or contribute out of the district fund towards the payment of a public band of music for the borough provided that the amount of such payments or contributions do not in any year exceed a sum equal to a rate of one penny in the pound on the assessable value of the borough to the general district rate. The Corporation may in any recreation ground or other public place enclose an area within which such band shall play and make regulations as to the time and place for the playing of the band the payment to be made for admission within the said enclosure and for securing good and orderly conduct during the playing of the band:

Provided always that no payment or contribution shall be made under this section unless incurred in pursuance of a resolution of an absolute majority of the whole number of the town council at a meeting of the town council after seven 'clear days' notice of such meeting and of the intention to propose such resolution.

Power to appoint officers.

26. The Corporation may appoint officers for securing the observance of this Part of this Act and of the regulations for the time being in force with respect to their recreation grounds and may procure such officers to be sworn in as constables for that purpose but any such officer shall not act as a constable unless in uniform or provided with a warrant and nothing in this section shall be deemed to render applicable to any such officer the provisions of the Police Act 1890 relative to a police superannuation fund or superannuation allowance.

Application of moneys received under this Part of Act.

27. The moneys (if any) received by the Corporation from the admission of any persons to the recreation grounds or any reading room assembly room or enclosure therein or from the letting of any refreshment rooms or other buildings or for the use of chairs or any apparatus or otherwise in connection with the execution of this Part of this Act shall be carried to the credit of the district fund.

PART V.

WEIGHING MACHINES.

Power to provide weighing-machines for general use.

28. Upon any land for the time being vested in the Corporation and available for the purpose (subject except in the case of market lands or premises belonging to the Corporation to the provisions of the section of this Act whereof the marginal note is "Power to appropriate lands") the Corporation may provide construct and maintain weighing-houses weighing-machines weighbridges weights

scales measures and other conveniences for use not only in connection with the markets (if any) of the Corporation but by the public generally for the purpose of weighing such goods articles and things as the Corporation may think fit and the Corporation may take levy receive and recover in respect of the use of any conveniences provided under this section such tolls rates and charges as the Corporation may from time to time prescribe and the provisions of the Markets and Fairs Clauses Act 1847 with respect to weighing of goods and carts with respect to the stallages rents and tolls to be taken by the undertakers with respect to the byelaws to be made by the undertakers and with respect to the recovery of damages not specially provided for and of penalties and the determination of any other matters referred to justices shall so far as they are applicable extend and apply to any conveniences to be provided under this section or the use thereof as if they were provided exclusively for the purposes of the markets of the Corporation to which the said Act applies and the Corporation was the market authority Provided that the Corporation shall not under this Act demand or receive in respect of the weighing of cattle sheep or swine any tolls exceeding the amounts specified in the Schedule to the Markets and Fairs (Weighing of Cattle) Act 1887 or such other amounts as may be authorised by the Local Government Board.

A.D. 1903.

29. The Corporation may confer vary or extinguish exemptions from and enter into compositions with any persons with respect to the payment of any rents rates tolls and charges which they may for the time being be authorised to levy recover or receive in connection with their weighing-machines and may confer vary or extinguish by agreement any rights and privileges in connection with their weighing-machine undertaking but so that no preference be in any case given to any person and that anything done under this section shall not prejudice the other provisions of this Act.

Power to confer exemptions from rates and to enter into compositions.

30. Every animal or article brought into any weigh-house of the Corporation and left therein after the hour of closing (except such as may be left in charge of the superintendent or inspector of the weigh-house) may be taken possession of by the superintendent or inspector In the case of any animal or non-perishable article so left if it be not claimed within one week the Corporation may proceed to sell the same and they shall return to the owner on demand the surplus proceeds of such sale after deducting any unpaid stallage rent or toll due in respect thereof together with the

Forfeiture of articles left in weigh-houses.

A.D. 1903.

expenses of detention and sale In the case of any article of a perishable nature so left if it be not claimed within twelve hours the Corporation may proceed to sell the same and they shall return to the owner on demand the surplus proceeds of such sale after deducting any unpaid stallage rent or toll due in respect of the same together with the expenses of detention and sale If in any such case as hereinbefore mentioned no demand shall be made by an owner within one month of a sale for the return of any surplus arising from a sale the proceeds of such sale shall be forfeited to the Corporation.

Application of revenue of weighing-machine undertaking and as to deficiency therein.

31.—(A) The Corporation shall carry to the district fund so much of any balance which shall remain in any year of the income of the weighing-machine undertaking after making due provision for working and establishment expenses cost of maintenance the payment of interest on borrowed moneys and the provision of the requisite appropriations instalments or sinking fund payments as may in the opinion of the Corporation not be required for carrying on improving or extending their weighing-machines and paying the current expenses connected therewith.

(B) Any deficiency in the revenue of the weighing-machine undertaking of the Corporation shall be forthwith made good out of the district fund.

Separate accounts to be kept for weighing-machine undertaking.

32. The Corporation shall keep the accounts in respect of their weighing-machine undertaking separate from all their other accounts distinguishing therein capital from revenue.

PART VI.

PENRHYN HALL.

Power for Corporation to take over hall.

33. The trustees are hereby empowered with the consent of the Right Honourable George Sholto Gordon Baron Penrhyn or other the person or persons entitled for the time being in possession to the Penrhyn estate to transfer and convey to the Corporation and the Corporation are hereby empowered to accept and take over from the trustees as from such date (in this Part and Part VII. of this Act referred to as "the date of conveyance") as may be agreed between the trustees and the Corporation the Penrhyn Hall with the land on which the same is erected and the appurtenances thereof together with any trust funds and moneys in the hands of the trustees and all other the real and personal property and all rights and privileges vested in or held by the trustees under or for the purposes of their trust.

34. If at the date of conveyance any action or other proceeding or any cause of action or proceeding is pending or existing against or in favour of the trustees the same shall not abate or be discontinued or in anywise prejudicially affected by reason of the conveyance or of anything in this Act but the same may be continued prosecuted and enforced against or in favour of the Corporation as and when it might have been continued prosecuted and enforced against or in favour of the trustees if such conveyance had not been effected.

A.D. 1903.
Pending
actions by
or against
trustees.

35. Except as is by this Act otherwise provided all purchases sales conveyances deeds contracts bonds and agreements entered into or made by the trustees and in force at the date of conveyance shall be as binding and of as full force and effect in every respect against or in favour of the Corporation and may be enforced as fully and effectually as if instead of the trustees the Corporation had been a party thereto.

Contracts of
trustees to
be binding
on Corpora-
tion.

36. The mortgage debt of the trustees and the interest thereon shall after the conveyance continue to be a charge on the property of the trustees upon which the same is secured to the same extent and with the same incidents as if this Act had not been passed and as if the Corporation were substituted for the trustees in respect of such mortgage debt and the Corporation shall indemnify and hold harmless the trustees from all claims and demands in respect thereof.

Mortgage
debt of trus-
tees to re-
main charged
upon hall.

37. All debts and liabilities lawfully due from or payable by the trustees at the date of conveyance shall be paid discharged and satisfied by the Corporation and the Corporation shall indemnify the trustees against the same.

Corporation
to discharge
debts of
trustees.

38. From and after the date of conveyance the trustees shall be by virtue of this Act freed and discharged from the duties and obligations of their trust and from acting in the execution thereof and shall be indemnified by the Corporation from all claims demands and liabilities in respect of acts bonâ fide done by them while acting as such trustees.

Discharge
of trustees.

39. After the conveyance the Corporation shall be at liberty to hold maintain repair enlarge extend and improve the Penrhyn Hall and other the premises to be acquired by them from the trustees under the powers of this Act and shall hold the same for the purposes and subject to the powers declared and contained in the Second Schedule hereto.

Carrying on
of hall by
Corporation.

A.D. 1903.

Deficiency
in receipts
to be made
good out of
borough
fund.

40. Any deficiency in the receipts of the Corporation on account of the Penrhyn Hall and other the premises to be acquired as aforesaid shall be made good out of the borough fund and the borough rate to be made by the council next after such deficiency has been ascertained shall be increased so far as may be necessary to recoup to the borough fund the amount so made good out of that fund.

Corporation
to keep sepa-
rate accounts
of Penrhyn
Hall.

41. The Corporation shall keep the accounts in respect of the said Penrhyn Hall and other premises to be acquired as aforesaid separate from all their other accounts distinguishing therein capital from revenue.

Saving for
jurisdiction
of High
Court of
Justice and
Charity
Commis-
sioners.

42. Nothing in this Act shall take away abridge or affect any power or jurisdiction of the Chancery Division of the High Court of Justice or any judge thereof or the Charity Commissioners for England and Wales in the exercise of their ordinary jurisdiction in regard to the said hall and premises and the profits and proceeds thereof or the scheme contained in the Second Schedule to this Act and notwithstanding that the said scheme has been founded by Parliament it shall be lawful for the Chancery Division of the High Court of Justice or any judge thereof or the Charity Commissioners from time to time in the exercise of their ordinary jurisdiction to establish schemes for the alteration of any of the provisions contained in the said Second Schedule as if those provisions had been contained in a scheme established by the Charity Commissioners under their ordinary jurisdiction and not founded by Parliament.

PART VII.

BORROWING POWERS.

Power to
borrow.

43.—(1) The Council may independently of any other borrowing power borrow at interest any sum or sums of money for the purposes hereinafter mentioned not exceeding the respective amounts following (that is to say):—

(A) For the purchase of the Penrallt estate and defraying the costs and expenses incident to such purchase and incident to the gift dedication and appropriation of lands for the purposes of the College under the provisions of this Act the sum of eight thousand one hundred and fifty pounds:

(B) For the provision of weighing-machines such sums as the Local Government Board may sanction:

(c) For the repayment of the mortgage debt of the trustees the sum of one hundred and eighty pounds:

(D) For the replacement of moneys advanced on current account for capital expenditure upon the gas undertaking of the Corporation in respect of gas meters stoves and mains the sum of one thousand nine hundred and forty-seven pounds: A.D. 1903.

(E) For the provision of mains regenerator furnaces meters stoves and other plant in connection with the gas undertaking of the Corporation the sum of three thousand and fifty-three pounds:

(F) For the provision of new works in connection with the gas and water undertakings of the Corporation and for the extension and improvements of the said undertakings such sums as the Local Government Board may sanction:

(G) For paying the costs charges and expenses of this Act as hereinafter provided the sum necessary for that purpose:

(H) And with the sanction of the Local Government Board such further moneys as the Corporation may require for any of the purposes of this Act.

(2) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Corporation may mortgage or charge for purposes (A) (C) and (G) the borough fund and borough rate and for purposes (B) (D) (E) and (F) the district fund and general district rate and for purposes (H) either the borough fund and borough rate or the district fund and general district rate as the Local Government Board may at the time of such sanction direct and in addition for purpose (B) the revenue of the weighing-machines of the Corporation and for purpose (C) the revenue of the Penhryn Hall and any lands held in connection therewith and for purposes (D) (E) and (F) the revenue of the gas and water undertakings of the Corporation.

44. The Corporation may raise all or any moneys which they are authorised to borrow under this Act either by mortgage or by issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another Provided that the provisions of this Act with respect to the sinking fund to be provided for the repayment of moneys raised under this Act shall apply to any money raised under the Local Loans Act 1875 in lieu of the provisions of sections 15 and 16 of that Act. Mode of raising money.

45. The powers of borrowing money by this Act given shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount Certain regulations of Public Health Act

A.D. 1903. which the Corporation may borrow under that Act the moneys
as to bor- which the Corporation may borrow under this Act shall not be
rowing not reckoned.
to apply.

Provisions
of Public
Health Act
as to mort-
gages to
apply.

46. The following sections of the Public Health Act 1875 shall extend and apply mutatis mutandis to mortgages granted under this Act (that is to say) :—

Section 236 Form of mortgage.

Section 237 Register of mortgages.

Section 238 Transfer of mortgages.

Section 239 Receiver may be appointed in certain cases.

Periods for
payment off
of money
borrowed.

47. The Corporation shall pay off all moneys borrowed by them under this Act and the mortgage debt of the trustees within the respective periods (in this Act referred to as "the prescribed period") following (that is to say) :—

As to moneys borrowed for the purposes (A) mentioned in the section of this Act the marginal note whereof is "Power to borrow" within sixty years from the date or dates of the borrowing of the same :

As to the mortgage debt of the trustees and the moneys borrowed for the purpose of the repayment of the same within thirty years from the date of the conveyance :

As to moneys borrowed for the purposes (D) and (E) in the said section mentioned within twenty years from the date or dates of the borrowing of the same :

As to moneys borrowed for the purpose (G) in the said section mentioned within five years from the date or dates of the borrowing of the same :

As to moneys borrowed with the sanction of the Local Government Board within such period as they may think fit to sanction.

Mode of
payment off
of money
borrowed.

48. The Corporation shall pay off the mortgage debt of the trustees and all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest or by means of a sinking fund or partly by such instalments and partly by a sinking fund Provided that the Corporation shall commence such repayments by instalments or set apart or appropriate moneys to or for the purposes of a sinking fund on or before the following times namely As regards moneys borrowed for the purpose (C) mentioned in the section of this Act the marginal note whereof is "Power to borrow" the expiration of one year from the date of the

conveyance and as regards moneys borrowed for all other purposes the expiration of one year from the date of borrowing the same. A.D. 1903.

49. If the Corporation determine to pay off by means of a sinking fund the mortgage debt of the trustees and any moneys borrowed under the authority of this Act the following regulations shall be observed :— Regulations as to sinking fund.

The Corporation in every year shall appropriate and set apart out of the rate and revenue on the security of which such moneys shall have been borrowed such equal annual sums as will with the accumulations thereof by way of compound interest at not exceeding three per centum per annum with yearly rests be sufficient to pay off the whole of the principal moneys borrowed on such security under this Act and repayable by a sinking fund within the prescribed period :

The rate of accumulation on which the amounts paid to the sinking fund are based is hereinafter referred to as "the prescribed rate" :

Provided as follows (that is to say) :—

(A) The yearly sums so to be appropriated and set apart shall be invested from time to time and accumulated in the way of compound interest by investing the same and the dividends interest and annual income thereof respectively in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments Provided that if in any year the income arising from the investments of the sinking fund does not equal the prescribed rate any deficiency shall be made good out of the rate and revenue from which the annual payments to such fund are made and that if in any year such income exceeds the prescribed rate an excess may be applied in reduction of the annual payments which would otherwise be required to be made to such fund :

(B) The Corporation may at any time apply the whole or any part of the sinking fund in or towards the repayment of the borrowed moneys for the repayment whereof the sinking fund was set aside in such order and manner as they deem proper Provided that in such case they pay into such sinking fund in each year afterwards and accumulate as hereinbefore prescribed until the whole of the borrowed moneys to which such sinking fund is applicable are discharged a sum equal to the interest produced by the sinking fund or part thereof so applied at

A.D. 1903.
—

the prescribed rate. Provided also that whenever and so long as the value of the securities standing to the credit of the sinking fund taken at the market price of the day shall be equal to the amount of the borrowed moneys then outstanding for the repayment of which it was set aside the Corporation may in lieu of investing the yearly income of such fund apply the same in payment of interest on moneys in respect of which the fund was set aside and may during such periods discontinue the payment to the sinking fund of the yearly sums required to be paid thereto.

Return
respecting
sinking fund
to Local
Government
Board.

50.—(1) The town clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the town clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual

payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court. A.D. 1903.

51. If the Corporation pay off or propose to pay off any moneys borrowed by them under the powers of this Act otherwise than by means of instalments or appropriations or annual repayments or a sinking fund or out of the proceeds of the sale exchange or disposition of lands or out of fines or premiums on leases or other moneys received on capital account not being borrowed moneys they may from time to time re-borrow the moneys so paid off or borrow moneys for the purpose of paying off the moneys so proposed to be paid off but all moneys re-borrowed or borrowed under this section shall be repaid within the period prescribed for the repayment of the moneys in lieu of which such re-borrowing or borrowing shall have been made and any amounts from time to time re-borrowed or borrowed under this section shall be deemed to form the same loan as the moneys in lieu of which such re-borrowing or borrowing shall have been made and the obligations of the Corporation with respect to the repayment of such moneys shall not be in any way affected by such re-borrowing. Power to re-borrow.

52. The Corporation shall not be bound to see to the execution of any trust whether expressed or implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register or books of the Corporation shall be a sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register or books and the Corporation shall not be bound to see to the application of the money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of any such money. Corporation not to regard trusts.

A.D. 1903.

Protection of
lender from
inquiry.

53. A person lending money to the Corporation under this Act shall not be bound to inquire as to the observance by them of any of the provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or any part thereof.

Saving for
existing
charges.

54. Nothing in this Act shall prejudicially affect any charge on the revenue and rates or the estates and property of the Corporation subsisting at the passing of this Act and every mortgagee or person for the time being entitled to the benefit of any such charge shall have the same priority of charge and all the like rights and remedies in respect of the revenue rate or property subject to his charge as if this Act had not passed and all such charges created before the passing of this Act shall during the subsistence thereof have priority over any mortgage or charge granted under this Act on the same revenue rate or property.

Application
of borrowed
moneys.

55. All moneys borrowed by the Corporation under the powers of this Act shall be applied only to the purposes for which they are respectively authorised to be borrowed and to which capital is properly applicable.

PART VIII.

MISCELLANEOUS.

Expenses of
executing
Act.

56. All expenses incurred by the Corporation in carrying into execution the provisions of this Act (except such of those expenses as are to be paid out of borrowed moneys or are otherwise specifically provided for) shall be paid out of the borough fund and borough rate or the district fund and general district rate as the Corporation may in their discretion having regard to the object of the expenditure deem equitable provided that when any expenditure is incurred for purposes common to two or more accounts the Corporation may apportion the same between those accounts in such manner as they deem equitable.

Audit of
accounts.

57. The provisions of the Municipal Corporations Act 1882 relating to the keeping and auditing of accounts and the accounts kept of sums received and paid under that Act shall extend and apply to the keeping and auditing of accounts and to the accounts kept of sums of money received and paid by the Corporation under or for the purposes of this Act.

58.—(1) Upon the person now holding the office of collector of the poor rates for the parish of Bangor ceasing to hold that office the power of the guardians of the Bangor and Beaumaris Union to appoint collectors of poor rates shall cease in respect of the parish of Bangor so that the poor rate and rates collected by the Corporation may be collected by the same person or persons.

A.D. 1903,
Collection of
rates.

(2) The Local Government Board may on the application of the Corporation prescribe and from time to time amend and vary a form of rate to include the poor rate borough rate general district rate water rate and rent gas rate and rent or any other rates or rents leviable by the Corporation or the overseers for the parish of Bangor and they may in respect of such rates and rents prescribe a form of demand note receipt and other necessary documents and any form so prescribed shall be sufficient in law.

59.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in relation to any of the duties imposed on that Board under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

Inquiries by
and expense
of Local
Government
Board.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

60. All byelaws made by the Corporation under the powers of this Act shall be made under and according to the provisions contained in sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority.

General pro-
visions as to
byelaws.

61. In the case of any notice or other such document under this Act requiring authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication. Notices orders and any other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act, authorised to be served. Provided always that in the case of any company any such notice or document shall be delivered or sent by post addressed to the secretary or clerk of the company at their principal office or place of business.

Authentica-
tion and
service of
notices.

A.D. 1903.

Compensation may be in land &c.

62. The Corporation when they are required by any enactment to make compensation to any person interested in any lands may by agreement with such person make such compensation wholly or partly in works land or money but in the case of land for the alienation of which the consent of any public department is required only with such consent.

Compensation &c. how to be determined.

63. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided for by the Public Health Acts Provided that where any such compensation costs damages or expenses is or are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such compensation costs damages or expenses in case of dispute may be ascertained by the court before whom any offender is convicted.

Persons acting in execution of Act not to be liable.

64. No matter or thing done or contract entered into by the Corporation or the town council nor any matter or thing done by the town clerk or by any member officer or clerk of the Corporation or any person whomsoever acting under the direction of the town council shall if the matter or thing were done or the contract were entered into bonâ fide for the purpose of executing this Act subject them or any of them personally to any action liability claim or demand whatsoever and any expense incurred by the Corporation or town council or town clerk member officer clerk or person acting as last aforesaid shall be borne and repaid out of any of the funds at the disposal of the Corporation.

Prosecution of offences.

65. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs and expenses except such as are recoverable along with the penalty shall not be recovered as penalties but may be recovered summarily as a civil debt.

Informations by whom to be laid.

66. All informations under or for the breach of any of the provisions of this Act or of any byelaw made thereunder may be laid by any officer of the Corporation duly authorised in that behalf or by the town clerk.

Saving for indictments &c.

67. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall

relieve any person in respect of any such matter from any penalty or other consequence to which he would have been liable if such matter had not been made punishable by this Act. Provided that no person shall be punished for the same offence under this Act and also under any other Act. A.D. 1903.

68. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding or revocation of any consent or approval of or by the Corporation or of or by any officer of the Corporation or by any conviction or order made by a court of summary jurisdiction under any provision of this Act may appeal (but in cases where an appeal is by this Act given to a court of summary jurisdiction then only after such appeal) to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order the Corporation may in like manner appeal. As to appeal.

69. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate. Judges not disqualified.

70. All powers rights authorities and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights authorities or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Corporation and such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed. Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence. Powers of Act cumulative.

71. The costs charges and expenses preliminary to and of and incidental to the preparing of and applying for and the obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons and the costs incurred by the Corporation in or with the object of complying with the provisions of the Borough Funds Act 1872 with respect to the Bill for this Act shall be paid by the Corporation out of the borough fund and borough rate or out of moneys borrowed under the authority of this Act for that purpose. Costs of Act.

A.D. 1903.

The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

PART I.

All those lands situate in the borough of Bangor and being a portion of the Old Episcopal Park the boundary line whereof starting from the west corner thereof (which said west corner is a point at the intersection of the north-westerly boundary of the said Episcopal Park and a line drawn in a south-easterly direction through the two entrance gate-posts of a tenement and grounds known as Penrallt) runs towards the north-east along the south-eastern boundaries of several plots of land now respectively known as Penrallt the Bangor County School for Girls Caederwen the University Hall and Gartherwen for a distance of 1,176 feet to a point on the road known as Love Lane (about to be widened on the westerly side thereof by 10 feet) and thence runs in a southerly direction along the intended new boundary wall of the said road (which will be 10 feet more to the west than the existing boundary) for a distance of 774 feet to the junction of the said road with an intended new road and thence in a south-westerly direction along the north-westerly side of the said intended new road for a distance of 570 feet to a point on the north-west side of the said new road being a point situate 171 feet from the north-west corner of the Old Episcopal Palace and then towards the north-west for a distance of 329 feet or thereabouts back to the starting point at the said west corner and which lands contain by admeasurement 6 acres 2 roods and 16 perches or thereabouts.

PART II.

All those lands situate in the borough of Bangor known as the Penrallt estate the boundary line whereof starting from the west corner thereof being a point at the junction of the road known as College Road and the road known as Penrallt Road runs towards the north-east in a curved line along College Road aforesaid for a distance of 476 feet and then breaks south-east in an approximately straight line adjoining the lands now occupied by the Bangor County School for Girls for a distance of 340 feet to a point on the western boundary of the lands hereinbefore described in the first part of this Schedule and thence in a south-westerly direction for a distance of 305 feet along the western boundary of the said before-described lands to a point on the boundary of the Bishop's Park 26 feet from the south-easterly gate-post of the entrance to lands herein described being and then after passing the said entrance gates towards the south-west and afterwards towards the north-west in a curved line along Penrallt Road aforesaid back to the starting point (a distance of 503 feet) and which lands comprise by admeasurement 4 acres 1 perch and 8 square yards or thereabouts.

PART III.

A.D. 1903.

All those lands situate in the borough of Bangor and being a portion of the Old Episcopal Park and lying to the south of the lands described in the first part of this Schedule and divided therefrom by the intended new road referred to in the said first part of this Schedule and the boundary line whereof starting from the north-east corner thereof which said north-east corner is a point at the junction of the said intended new road with the road known as Love Lane and a road known as Garth Road runs along the south-easterly side of the said new road for a distance of 430 feet to a point on the south-east side of the said intended new road at its junction with another intended new road (herein called the second new road) running south and thence along the east side of the second new road for a distance of 187 feet to a point on the east side of the said second new road being a point situate 154 feet from the north-east corner of the Old Episcopal Palace and then in a westerly direction for a distance of 392 feet to a point on the road known as Garth Road and then towards the north for a distance of 225 feet back to the starting point at the said north-east corner which lands contain by admeasurement 2 acres and 3 roods or thereabouts.

THE SECOND SCHEDULE.

TRUSTS POWERS AND REGULATIONS GOVERNING THE PENRHYN HALL.

I. The Corporation shall hold the Penrhyn Hall and other the premises to be acquired by them from the trustees under the powers of the Act upon trust to use the same or permit the same to be used for the benefit of the inhabitants of the town of Bangor and the persons resorting thereto for the purpose of any public meeting or assembly for which such halls are commonly used or for any public purpose of science art literature recreation entertainment or amusement subject nevertheless to such payments for the use of the said hall as to the Corporation shall seem expedient.

II. The Corporation may let the said premises or any part thereof for the purposes of any particular meetings or entertainments.

III. The Corporation may make byelaws for the purpose of regulating and controlling the use of the said premises and the conduct of persons resorting thereto.

IV. The Corporation shall apply the profits of the said premises as follows (that is to say) First in payment of interest on moneys borrowed by the Corporation for repayment of the mortgage debt of the trustees from whom the Corporation acquire the premises aforesaid Secondly in payment of the working and establishment expenses and costs or maintenance and improvement of the said hall and premises Thirdly in providing the requisite instalments appropriations or sinking fund payments in respect of moneys borrowed by the Corporation for repayment of the said mortgage debt

A.D. 1903. — Fourthly in providing a reserve fund not exceeding four hundred pounds to meet any extraordinary expenses which may thereafter be deemed desirable in connection with the said premises such fund being provided by the Corporation if they think fit by setting aside such moneys as they may from time to time think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to four hundred pounds and such fund shall be applicable from time to time to answer any deficiency at any time happening in the income of the Corporation from the said premises or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the said premises and so that if that fund is at any time reduced it may thereafter be again restored to the sum of four hundred pounds and so from time to time as often as such reduction happens. Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the sum of four hundred pounds. Fifthly any balance of the said profits shall be carried to the borough fund.

V. If in the opinion of the Corporation the said Penrhyn Hall and premises shall not be required or shall become unsuitable for any of the purposes mentioned in clause I. of this Schedule or if for two consecutive years the profits of the said premises shall be insufficient for the maintenance thereof without assistance from the borough fund the Corporation may with the approval of the Charity Commissioners of England and Wales sell the said hall and premises and also may with the like approval let the same for such terms not exceeding seven years at any one time at such rents and for such considerations and with under and subject to such rights powers privileges and authorities relating thereto as the Corporation may think fit. The rents and profits to be derived from letting the said premises shall be applied as provided by clause IV. in regard to the profits therein mentioned and the net proceeds of any sale of the said premises shall be applied for the benefit of the inhabitants of Bangor as the said Charity Commissioners shall direct.

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